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Supreme Court of British Columbia â New Westminster No. NW-250981

SYNTHETIC TEST FIXTURE - not a copy of a judgment. Not for filing.

AUTHORITY STATUS: UNVERIFIED

Case: Chaston Construction Corp. v. Henderson Land
Citation: 2002 BCCA 357 (as supplied by the requesting paralegal; NOT CONFIRMED)
Court: Court of Appeal for British Columbia
Topic: Amendment of pleadings - liberal amendment principles

WHY THIS TAB IS A PLACEHOLDER

The official reasons for judgment were not available when this fixture was prepared. The citation has not
been confirmed against CanLII or the official report, and no quotation or pinpoint is reproduced here.
Before this tab is used in any filing:

1. Retrieve the decision from CanLII or the BC Courts website and confirm the citation, court,
   date, parties and panel.
2. Confirm that the decision stands for the proposition below, and replace this summary with the
   accurate pinpoint references and quotations.
3. Confirm that it has not been overruled, distinguished or reversed (check subsequent history).

PROPOSITION TO BE VERIFIED (paraphrase for drafting, not a quotation)

Courts in British Columbia have generally taken a liberal approach to amending pleadings under
Supreme Court Civil Rule 6-1(1), so that the real issues between the

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parties can be determined on the
merits. Leave is usually granted where the amendment is properly
particularized, discloses a
reasonable claim, and any prejudice to the other side can be compensated by
costs or by an
adjournment. Leave is more likely to be refused where the proposed
amendment is plainly statute-barred
on the face of the record, is not properly pleaded, or would cause
prejudice that cannot be remedied.

RELATED PROVISIONS TO CHECK

- Supreme Court Civil Rule 6-1 (amendment of pleadings)
- Supreme Court Civil Rule 6-2 (adding, removing or substituting parties)
- Supreme Court Civil Rule 1-3 (object of the Rules)
- Limitation Act, S.B.C. 2012, c. 13 (sections 6, 8 and 21)

CITATION IN THE APPLICATION RECORD

This tab is cited at Notice of Application Part 3, paragraph 6 and
Application Response Part 5,
paragraph 5. Both citations carry the same "unverified" qualifier and must
be updated when the
authority is confirmed.